

registered the same, if not similar trademark; you need to change yours as this is on a first-come-first-serve basis.

Step 2: Registration of the trademark

As mentioned above, this is done by an individual or business with the Ministry of Commerce. The process usually takes about eighteen to twenty four months. In the case of a smaller organisation or individual, the government fees for registering your trademark is ₹4,500. Startups, small businesses or enterprises are classified as small organisations. A fees of ₹9,000 is charged for all other companies and organisations. Attorney fees or any other add-on expenses that will be incurred are additional (come on, even lawyers need to make a living right?). The trademark office will check your application and confirm your attorney's findings that this name and/or logo are in fact unique to you/your organisation. Once this is done, they make an advertisement in the trademarks journal to give a chance to other businesses to raise any objections to your trademark. Any dispute can be filed within a period of four months from the date of the advertisement. On the completion of four months, your trademark will be registered six months later. If an individual or organisation disputes the potential registration of your trademark, the objection will need to be overcome by taking it to the district court or high court with original jurisdiction in some instances. Trademark infringement hearings for this dispute will have to be arranged. Attorney fees and number of hearings needed will depend on the complexity of the case.

Copyright registration

Your logo is also a part of your unique identity and also the customer experience. Customers remember the logos and identify the company and brand with the logos. Special care needs to be taken to develop a logo – one that can connect with the customers and convey what you stand for. Now would you like somebody else to use or slightly tweak this logo for their own use? Enter copyright registration for extra protection. Copyright is generally done for artistic works like cinematography, literary manuscript, sound recording, etc., but it can also be applied to logos. Copyright registration is typically faster than trademark registration. Therefore, businesses that require quick brand registration can apply for a copyright registration in addition to the trademark registration.

The procedure for this is quite straightforward. Let's break it down into simple steps. First of all, submit an application form (Form 14), with